

subdivision (a) or (b).

(d) If authorized by any provision in Section 1701, 1702, 2110, or 2111 of the Corporations Code (or Sections 3301 to 3303, inclusive, or Sections 6500 to 6504, inclusive, of the Corporations Code, as in effect on December 31, 1976, with respect to corporations to which they remain applicable), as provided by that provision.

CCP § 416.10

An assistant manager of a branch office in Redding, California is likely not authorized to accept service of a Summons.

It is Plaintiff's responsibility to properly serve the matter on all named Defendants and file a valid Proof of Service of Summons within 60 days of the filing of the Complaint. CRC 3.110(b). "If a party fails to serve and file pleadings as required under this rule, and has not obtained an order extending time to serve its pleadings, the court may issue an order to show cause why sanctions shall not be imposed." CRC 3.110(f). Plaintiff has not complied with CRC 3.110(b). However, as it appears that Plaintiff is making good faith efforts to effectuate service, the Court is not inclined to issue an Order to Show Cause Re: Monetary Sanctions at this time.

The Court notes that Specially Appearing Defendant CSAA Insurance Exchange has filed a Motion to Quash Service of Summons which is noticed for March 3, 2025 at 8:30 a.m. The matter is set for hearing on **Monday, March 3, 2025 at 9:00 a.m. in Department 63** for review regarding status of service and responsive pleadings. Plaintiff is ordered to comply with CRC 3.110.

PIERCY, ET AL. VS. MCINTOSH, ET AL.

Case Number: 24CV-0204617

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on December 16, 2024, to Plaintiffs Dean Piercy and Rusty Piercy, *in pro per*, for failure to timely serve pleadings on defendants pursuant to California Rules of Court, Rule 3.110(b). "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). The Complaint in this matter was filed on March 25, 2024, and no Proof of Service of Summons has been filed. Plaintiffs did not file a written response to the Order to Show Cause.

With no sufficient excuse for the delay, sanctions are imposed in the amount of \$250.00 against Plaintiffs. The clerk is instructed to prepare a separate Order of Sanctions. The Court will issue an Order to Show Cause Re: Dismissal pursuant to Gov't Code Section 68608(b) for Plaintiffs' failure to timely serve Defendants per CRC 3.110(b) and failure to timely prosecute. The hearing on the Order to Show Cause Re: Dismissal is set for **Tuesday, April 1, 2025, at 8:30 a.m. in Department 63.** The clerk is instructed to prepare a separate Order to Show Cause Re: Dismissal. This matter is also calendared on **Tuesday, April 1, 2025, 2025 at 9:00 a.m. in Department 63** for review regarding status of service.

REDDING BUSINESS PARK, LLC VS. AMAZING FINDS, LLC, ET AL.

Case Number: CVCV19-0192492

Tentative Ruling on Motion for Reconsideration and/or Amend Judgment: Plaintiff Redding Business Park, LLC obtained a default judgment in the amount of \$47,073.45 on November 13, 2024. The judgment is comprised of \$28,080.00 in damages, \$16,848.00.00 in attorney's fees, and \$2,145.45 in costs. The Court did not award prejudgment interest based on Plaintiff's failure to accurately calculate interest. Plaintiff seeks reconsideration of this ruling and for prejudgment interest in the amount of \$15,444.00.

Plaintiff did not provide the legal basis for reconsideration in the moving papers. Motions for reconsideration are

generally made pursuant to CCP § 1008, however, Plaintiff did not comply with CCP § 1008 as the motion was made more than ten days after the judgment was entered. Plaintiff did not provide an affidavit as required by CCP § 1008(a). The Court also reviewed CCP § 473 to determine whether the Court could grant the relief requested pursuant to CCP § 473(b). However, CCP § 473(b) would require an application and an attorney's sworn affidavit, neither of which were provided.

As Plaintiff has failed to identify legal grounds for the relief sought and has failed to comply with the two possible statutes under which Plaintiff may have been able to obtain relief, the motion is **DENIED**. Plaintiff did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiff is to prepare the Order.

US LBM, LLC VS. WOOLLEY, ET AL.

Case Number: 24CVG-00135

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on December 19, 2024 to Defendants Donald Franklin Woolley and The Western Surety Company and their counsel, McCarthy & Rubright, LLP for failing to appear at the review hearing on December 16, 2025. No written response was filed, however, Defendants filed a Status Conference Statement for today's 9:00 a.m. review hearing. The Order to Show Cause is **DISCHARGED**. The Court will call the matter at 9:00 a.m.

9:00 a.m. – Review Hearings

BUCKLEY, ET AL. VS. CALIFORNIA DEPARTMENT OF FORESTRY AND FIRE PROTECTION

Case Number: 23CV-0201699

This matter is on calendar for conformation of deposit of funds into blocked account. The Court notes that since this hearing was calendared, Plaintiff appeared and informed the Court that the settlement funds will be available in late February. The Court set **Monday, March 24, 2025 at 9:00 a.m. in Department 63** for review regarding confirmation of deposit. The matter is dropped from calendar and **no appearance is necessary on today's calendar**.

EDWARDS VS. TYRRELL RESOURCES, INC., ET AL.

Case Number: 23CV-0202609

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this matter as a Plan III case and intends on setting it for trial no later than June 24, 2025. Defendants have posted jury fees. Plaintiff has waived jury by failing to post within ten days of when leave was granted on July 22, 2024. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar**.

FLORES VS. DADDARIO

Case Number: 24CV-0204188

This matter is on calendar for status of service on Defendant. The Court still has not received a valid proof of service. As Plaintiff has filed a notice of appeal with the Court of Appeal, this Court will continue the case to await a response from the Court of Appeal. The case is calendared for **Tuesday, April 1, 2025 at 9:00 am** for status of service.

FLORES VS. MILLER

Case Number: 24CV-0204648

This matter is on calendar for status of service on Defendant. The Court still has not received a valid proof of service. As Plaintiff has filed a notice of appeal with the Court of Appeal, this Court will continue the case to await a response from the Court of Appeal. The case is calendared for **Tuesday, April 1, 2025 at 9:00 am** for status of service.